

SDF

SDF Clothing Ltd

Terms & Conditions

Garment Manufacturing & Export Agreement

Dhaka & Narayanganj, Bangladesh · Est. 1998
This document governs all sampling, production, and export engagements between
SDF Clothing Ltd and its clients.

Table of Contents

1. About SDF Clothing Ltd
2. Acceptance Of Terms
3. Services We Provide
4. Sampling Policy
5. Order Terms
6. Payment Terms
7. Pricing & Quotations
8. Delivery Terms & Incoterms
9. Quality Control
10. Intellectual Property
11. Compliance & Ethical Manufacturing
12. Limitation Of Liability
13. Confidentiality
14. Governing Law & Dispute Resolution
15. Website Use
16. Changes To These Terms
17. Contact

SECTION 1 — ABOUT SDF CLOTHING LTD

SDF Clothing Ltd is a registered garment manufacturer and exporter based in Bangladesh, operating in full compliance with Bangladesh's national garment industry regulations and international export standards. We provide end-to-end garment manufacturing services including OEM production, private label manufacturing, CMT (Cut, Make, Trim) services, and custom sample development for clients worldwide.

Our operations conform to internationally recognised ethical manufacturing and compliance frameworks. Full compliance documentation is available to verified business partners upon written request following successful client qualification.

Registered address: House 125, Road 01, Baridhara DOHS, Dhaka-1212, Bangladesh **Website:** <https://sdf ltd.com> **Business enquiries:** via Contact Form at /contact only

SECTION 2 — ACCEPTANCE OF TERMS

By accessing our website, submitting a contact or sample request form, or entering into any business correspondence with SDF Clothing Ltd, you acknowledge that you have read, understood, and agree to be bound by these Terms & Conditions in their entirety.

These terms apply to:

If you do not agree to these terms, you must not use our website or engage our services.

SECTION 3 — SERVICES WE PROVIDE

SDF Clothing Ltd offers the following manufacturing and export services:

3.1 OEM Manufacturing

Full original equipment manufacturing for brands and retailers — production based on client-supplied specifications, tech packs, and approved samples.

3.2 Private Label Manufacturing

End-to-end production with client branding, labels, hang tags, and packaging as specified by the client.

3.3 CMT Services

Cut, Make, and Trim services for clients who supply their own fabric and materials.

3.4 Sample Development

Custom sample creation based on client tech packs, reference samples, or design briefs prior to bulk order confirmation.

3.5 Export Services

Full export documentation, customs compliance, and international shipping coordination under agreed Incoterms.

SECTION 4 — SAMPLING POLICY

4.1 Sample Request Process

Sample development begins only after the client has submitted complete specifications including tech pack, fabric requirements, colour references, label details, and any other relevant documentation. Incomplete submissions will delay the sampling process.

4.2 Sample Development Deposit

A non-refundable deposit of 30% of the confirmed bulk order value (or a mutually agreed sample development fee for clients without a confirmed order value) is required before any sample development commences. This deposit serves as a commitment of genuine intent and covers initial material sourcing and production costs.

This deposit policy exists to protect both parties. We have found that without a deposit requirement, a significant proportion of sample requests do not convert to orders, resulting in unrecovered costs for both material sourcing and production time. The deposit ensures we can allocate dedicated resources to your development.

4.3 Deposit Credit

The 30% deposit paid for sample development is fully credited toward your confirmed bulk order value. It is not an additional charge — it is an advance payment against your production order.

4.4 Refund Conditions

The sample development deposit is non-refundable if the client decides not to proceed with a bulk order after an approved sample has been delivered, if the client requests design changes that require re-sampling beyond the included revision rounds (see Section 4.7), or if the client does not respond within 60 days of sample completion.

The deposit is refundable in one specific case: if SDF Clothing Ltd is unable to produce a sample matching the client's approved tech pack and specifications within 10 development attempts (see Section 4.7), the full deposit will be refunded without further condition. This is the only circumstance under which the deposit is refunded.

4.5 Sample Ownership

Physical samples remain the property of SDF Clothing Ltd until the sample development deposit is received in full. Upon receipt of payment, completed samples are shipped to the client at the client's expense.

4.6 Sample Shipping

All sample shipping costs are borne by the client. SDF Clothing Ltd will provide a shipping cost estimate prior to dispatch. The client must provide a valid shipping account number or prepay shipping charges before samples are dispatched.

4.7 Revisions

If a sample does not match the client's approved tech pack and specifications, SDF Clothing Ltd will remake it at no additional cost, up to a maximum of 10 development attempts per style. This applies specifically to matching

the originally approved specifications — revisions requested due to a change in the client's own design, fabric, or specification after initial approval are treated as new development work and may be subject to additional fees, communicated and agreed in writing before commencing.

If a matching sample has not been achieved within 10 attempts, the client is entitled to a full refund of the development deposit under Section 4.4.

SECTION 5 — ORDER TERMS

5.1 Minimum Order Quantity

The minimum order quantity (MOQ) is 300 pieces per style. A maximum of 2 styles may be combined within a single order, with up to 4 colour variations permitted per style.

Orders below the MOQ will not be accepted. Clients requiring smaller quantities are encouraged to contact us to discuss options for future seasons as their volume scales.

This 300-piece MOQ applies to standard production in our certified factory (see Section 11 — Compliance & Ethical Manufacturing). It does not include product-specific certification — a certificate tied to the client's exact brand, fabric lot, and style requires a fully certified material chain (fabric, trims, labels, packaging), each with its own sourcing minimums. For orders requiring product-specific certification, the MOQ is 5,000 pieces per style. Clients who can supply their own certified materials for the complete chain may request product-specific certified production at the standard 300-piece MOQ.

5.2 Order Confirmation

An order is confirmed only upon receipt of:

Verbal agreements, email discussions, and preliminary quotations do not constitute confirmed orders.

5.3 Order Changes

Changes to confirmed orders — including style, colour, quantity, fabric, or delivery date — must be submitted in writing via our Contact Form. Changes may affect pricing and lead times. SDF Clothing Ltd reserves the right to accept or decline changes depending on the production stage at which the change is requested.

5.4 Order Cancellation

Once production has commenced, order cancellation is not permitted. If a client requests cancellation before production commencement, the advance payment (30% deposit) is forfeited. Any materials already sourced or cut will be charged to the client at cost.

SECTION 6 — PAYMENT TERMS

6.1 Payment Structure by Order Value SDF Clothing Ltd operates a tiered payment method system:

6.2 LC Payment Terms

6.3 TT Payment Terms

6.4 WorldRemit Payment Terms

6.5 Payment Reference & Dispute Resolution

All clients must retain their payment reference number. Disputes must be raised within 30 days via our Contact Form.

6.6 Late Payment

Late payment may result in suspension of production, cancellation with forfeiture of advance payments, and recovery of costs incurred.

6.7 Currency

All prices are quoted and invoiced in United States Dollars (USD) unless otherwise agreed in writing.

SECTION 7 — PRICING & QUOTATIONS

7.1 Quotation Validity

All price quotations provided by SDF Clothing Ltd are valid for 30 days from the date of issue unless otherwise stated.

7.2 Price Inclusions

Quotations clearly state the Incoterms basis. The client is responsible for understanding what costs are included and excluded.

7.3 Price Revisions

SDF Clothing Ltd reserves the right to revise pricing in the event of significant changes in raw material costs, energy costs, or currency exchange rates.

SECTION 8 — DELIVERY TERMS & INCOTERMS

8.1 Supported Incoterms SDF Clothing Ltd supports the following Incoterms 2020:

8.2 Lead Times

Standard production lead times are communicated at order confirmation. Typical lead times range from 60 to 120 days from PP sample approval and advance payment receipt.

8.3 Delivery Delays

SDF Clothing Ltd will make every reasonable effort to meet agreed delivery dates. We are not liable for delays caused by force majeure events, port congestion, shipping line delays, or customs clearance issues beyond our control.

8.4 Shipping Documentation

Standard export documentation includes commercial invoice, packing list, bill of lading or airway bill, certificate of origin, and any additional documents required by the destination country.

SECTION 9 — QUALITY CONTROL

9.1 In-Line Inspection

Our quality control team conducts in-line inspections throughout the production process, including fabric inspection upon receipt, in-process inspection at critical production stages, and final inspection prior to packing.

9.2 Third-Party Inspection

Clients are welcome to arrange third-party quality inspections at our facility prior to shipment. Inspection appointments must be arranged a minimum of 7 days in advance. Inspection costs are borne by the client.

9.3 Quality Disputes

In the event of a quality dispute, the client must notify SDF Clothing Ltd in writing within 14 days of receiving the shipment, providing photographic evidence and a detailed description of the alleged defect. Claims raised after 14 days of receipt will not be accepted.

SECTION 10 — INTELLECTUAL PROPERTY

10.1 Client Ownership

All designs, tech packs, artwork, CAD files, patterns, label designs, brand assets, and any other intellectual property submitted by the client remain the sole property of the client at all times.

10.2 Our Confidentiality Commitment

Client-supplied intellectual property is treated as strictly confidential. It is accessed only by production team members directly involved in the client's order.

10.3 Sample & Pattern Confidentiality

Patterns, samples, and prototypes developed for a client are specific to that client and will not be reproduced for or shared with any other party.

10.4 Our Intellectual Property

The content of sdf ltd.com — including text, imagery, layout, and design — is the intellectual property of SDF Clothing Ltd and is protected by applicable copyright law.

10.5 Third-Party IP Compliance

Clients warrant that all designs, branding, and materials submitted to SDF Clothing Ltd do not infringe the intellectual property rights of any third party.

SECTION 11 — COMPLIANCE & ETHICAL MANUFACTURING

11.1 Industry Standards

SDF Clothing Ltd operates in full compliance with Bangladesh's national garment industry regulations and is affiliated with recognised industry bodies governing RMG export compliance in Bangladesh.

11.2 Ethical Production

We are committed to ethical manufacturing practices including fair wages, safe working conditions, and compliance with Bangladesh Labour Law 2006 and its amendments.

11.3 Certifications

Our manufacturing processes conform to internationally recognised compliance and ethical production standards. Certification documentation is available to verified business partners upon request.

11.4 Environmental Responsibility

SDF Clothing Ltd is committed to sustainable manufacturing practices, including active tree plantation initiatives and operating our digital infrastructure on 100% renewable energy via Cloudflare Pages. Full statement at [/sustainability](#).

SECTION 12 — LIMITATION OF LIABILITY

12.1 Maximum Liability

SDF Clothing Ltd's total liability to a client in connection with any order shall not exceed the total value of that specific order as confirmed in the Purchase Order.

12.2 Exclusions

SDF Clothing Ltd shall not be liable for any indirect, consequential, or special damages including loss of profit, loss of business, or loss of anticipated savings.

12.3 Force Majeure

SDF Clothing Ltd shall not be liable for any failure or delay in performance caused by circumstances beyond our reasonable control including natural disasters, political unrest, labour strikes, pandemics, port closures, shipping disruptions, government actions, or power failures.

SECTION 13 — CONFIDENTIALITY

Both parties agree to treat all business information exchanged — including pricing, order quantities, production schedules, client identities, and supply chain details — as strictly confidential. Neither party shall disclose such information to any third party without the prior written consent of the other party, except where required by law.

This confidentiality obligation survives the termination of any business relationship between the parties for a period of 3 years.

SECTION 14 — GOVERNING LAW & DISPUTE RESOLUTION

14.1 Governing Law

These Terms & Conditions are governed by and construed in accordance with the laws of the People's Republic of Bangladesh.

14.2 Dispute Resolution

In the event of a dispute arising from or in connection with these Terms & Conditions or any order placed with SDF Clothing Ltd, the parties agree to first attempt resolution through good-faith negotiation within 30 days of the dispute being raised in writing.

14.3 Arbitration

If the dispute cannot be resolved through negotiation, it shall be referred to binding arbitration in Dhaka, Bangladesh, under the rules of the Bangladesh International Arbitration Centre (BIAC) or as otherwise mutually agreed by both parties.

14.4 International Clients

While these terms are governed by Bangladesh law, SDF Clothing Ltd recognizes that its clients operate under their own countries' trade, customs, and consumer laws, and is committed to conducting business in a way that supports compliance on both sides:

These commitments exist alongside — not instead of — each party's own legal obligations in their respective countries. Nothing in this section limits a client's rights or remedies under the laws that apply to them.

SECTION 15 — WEBSITE USE

15.1 Accuracy of Information

SDF Clothing Ltd makes every effort to ensure the information on sdf ltd.com is accurate and current. However, we do not warrant that all content is error-free or complete. Pricing, specifications, and availability are subject to change without notice.

15.2 No Warranty

The website is provided on an "as is" basis. SDF Clothing Ltd makes no warranties, express or implied, regarding the website's fitness for a particular purpose, uninterrupted availability, or freedom from errors or viruses.

15.3 External Links

Our website may contain links to third-party websites. These links are provided for convenience only. SDF Clothing Ltd is not responsible for the content, accuracy, or privacy practices of any third-party website.

SECTION 16 — CHANGES TO THESE TERMS

SDF Clothing Ltd reserves the right to update these Terms & Conditions at any time. The "Last updated" date at the top of this page reflects the most recent revision. Continued engagement with our services following any update constitutes acceptance of the revised terms. We recommend reviewing this page periodically.

SECTION 17 — CONTACT

For any questions regarding these Terms & Conditions, please use our Contact Form at </contact>. We will respond within 5 business days.

For urgent order-related matters, please include your order reference number or payment reference number in your message.